

STATE OF NEW YORK

7194--B

2025-2026 Regular Sessions

IN ASSEMBLY

March 21, 2025

Introduced by M. of A. BICHOTTE HERMELYN, ALVAREZ, EPSTEIN, REYES, KELLES, LEVENBERG, TAYLOR, BORES -- read once and referred to the Committee on Labor -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to prohibiting student loan payment credit history checks in making employment decisions

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The labor law is amended by adding a new section 219-b to read as follows:

§ 219-b. Student loan payment history; employment. 1. Except as provided in this section and in those cases otherwise mandated by law, it shall be an unlawful discriminatory practice for an employer to request or to use for employment purposes information indicating the payment status of a student loan, as defined in subdivision fourteen of section sixteen hundred seventy-six of the public authorities law, of an applicant for employment or otherwise discriminate against such applicant with regard to hiring decisions.

2. This section shall not apply to an employer, or agent thereof, that is required by state or federal law or regulations or by a self-regulatory organization, as defined in paragraph twenty-six of subdivision (a) of section three of the securities exchange act of 1934, as amended, to use an individual's student loan payment history.

§ 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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